

Nafees Ahmad v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 1 October 2024 · 2024:AHC:160529-DB · WRIT - C No. 30433 of 2024 · **Disposed; clause 6.5 representation to be decided; coercive action stayed**

HEADNOTE

A writ challenging an electricity demand for a connection the petitioner denied having taken was disposed of without deciding the demand. The Court accepted clause 6.5 of the U.P. Electricity Supply Code, 2005 as the remedy, directed the fourth respondent to decide the representation dated 20.11.2023 by a speaking order within four weeks, and restrained coercive action until that decision.

FACTUAL SUMMARY

Nafees Ahmad filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, challenging a demand by the Electricity Department for charges on connection No. 771723984421. He said he had never taken that connection and was being billed for it wrongly. He had already submitted a representation dated 20 November 2023 contesting the dues. On his counsel's request the Division Bench adjourned the petition on 19 September 2024, and heard it as a fresh case on 1 October 2024.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed electricity demand — clause 6.5 representation

HOLDING

The writ challenging the electricity demand is disposed of. The petitioner's remedy is to dispute the demand by objections under clause 6.5 of the U.P. Electricity Supply Code, 2005. The fourth respondent shall decide the representation dated 20.11.2023 against the dues by a speaking order within four weeks of communication of this order, and shall not take coercive action until that representation is decided. ¶ 2-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court accepted that the challenge to the electricity demand, including the denial that the petitioner had taken the connection, is to be pursued by objections under clause 6.5, and it did not adjudicate the demand in the writ. ¶ 2-3

clause-6.5-pending-representation-to-be-decided The petition was disposed of with a direction to the fourth respondent to decide the petitioner's representation dated 20.11.2023 against the demand by a speaking order within four weeks of communication of the order. ¶ 4

para-6.5-objection-before-coercive-recovery The fourth respondent was restrained from taking coercive action against the petitioner until the representation disputing the demand is decided. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD TAKEN CONNECTION NO. 771723984421 AND WHETHER THE ELECTRICITY DEMAND IS PAYABLE

Left to the fourth respondent on the representation dated 20.11.2023. ¶ 1,4